

25CMCV01670 25CMCV01670

County: los-angeles
Division: Civil Law and Motion
Department: A
Hearing date: 2026-08-13
Motion: DEFENDANTS' DEMURRERS AND MOTIONS TO STRIKE
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Case Number: 25CMCV01670 Hearing Date: August 13, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

TAMMY SCURLOCK,

Plaintiff,

vs.

JAMAL
KARMOUTA, et al.,

Defendants.

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CASE NO: 25CMCV01670

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRERS AND MOTIONS TO STRIKE

Dept.

A

DATE:

August 13, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/30/2025

1st

AMENDED COMPLAINT: 03/24/2026

TRIAL:

04/10/2028

MOVING PARTY: Defendants

Jamal Karmouta and Security Mortgage Lenders Inc.

RESPONDING PARTY: Plaintiff

Tammy Scurlock

1.

Background

This is an action for fraud. Plaintiff Tammy Scurlock ("Plaintiff") alleges that in 2007 she borrowed \$7,000 from defendant Security Mortgage Lenders, Inc. ("SML"), security by a deed of trust recorded on March 7, 2006. Plaintiff alleges that SML made no collection attempts for seventeen years, past the statute of limitations, but that after Plaintiff entered into a contract for the sale of her property, defendants SML and Jamal Karmouta (collectively, "Defendants") sent the escrow agency a payoff demand letter on October 18, 2024, demanding \$65,522.57 on or before October 31, 2024, despite the debt being uncollectable and there not being a valid lien on the property based on this debt.

2.

Discussion

Defendants demur to the first cause of action for unjust enrichment. Defendants contend that the First Amended Complaint ("FAC") fails to adequately allege facts showing that the contract is void or subject to rescission. In opposition, Plaintiff contends that this cause of action is adequately pled.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

California does not recognize unjust enrichment as a cause of action. (Everett v. Mountains Recreation & Conservation Authority (2015) 239 Cal.App.4th 541, 553.) However, while not a cognizable cause of action in itself, unjust enrichment has been recognized as a quasi-contract cause of action for restitution. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231.) A quasi-contract cause of action may only be asserted alongside a contract cause of action by pleading that the contract was void or rescinded, although it may be inconsistently pleaded with a cause of action on the contract. (Ibid.)

Defendants contend that Plaintiff’s cause of action fails because Plaintiff fails to adequately plead that the contract is void or rescinded. However, Plaintiff has not brought a cause of action against Defendants that sounds in contract; rather, all causes of action alleged against Defendants sound in tort. Therefore, Plaintiff need not allege that the 2007 contract between the parties was void or rescinded, because Plaintiff has not alleged a contract-based cause of action against Defendants.

Defendants also contend that Plaintiff cannot state a cause of action for unjust enrichment against Defendant Karmouta because he was not a party to the 2007 contract. However, Plaintiff’s quasi-contract cause of action, as pleaded, is

separate from the 2007 contract and instead relies upon Defendants' actions in 2024, alleging that they unjustly received a benefit from Plaintiff and would be unjustly enriched by retaining that benefit. (FAC ¶¶ 44-53; see *Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661.)

Plaintiff has therefore adequately alleged a quasi-contract cause of action under the name of unjust enrichment. The court will accordingly overrule Defendants' demurrer.

3.

Conclusion

Based on the foregoing, the court OVERRULES Defendants Jamal Karmouta and Security Mortgage Lenders Inc.'s demurrer to the complaint.

Defendants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 13, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court